

From: [Taryn Payne](#)
To: [Porter, Cassandra \(DEQ\)](#); sjmatthews@google.com
Cc: [Julie S. Hamilton \(julie.s.hamilton@usace.army.mil\)](mailto:julie.s.hamilton@usace.army.mil); [MRC - jpa Permits](#)
Subject: RE: 26-0171 Project Loch: Additional Information Request 4
Date: Thursday, July 2, 2026 1:42:59 PM
Attachments: [image001.png](#)

Good afternoon Cassie,

Please see the file transfer link below for the requested information:

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26-0171_2026-06-18_Add Info 4 Request_Response Package.pdf

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<https://www.sendthisfile.com/Em9FxQW1aK4J6VgF8Juw79sn>

Note: These files will expire in 14 days from the time this email was generated.

Let me know if you have any further questions.

Have a great holiday weekend!

Taryn Payne, PWD, PWS, ISA-CA
Environmental Project Manager

TIMMONS GROUP | www.timmons.com

7053 Celebration Park Ave, Suite 300, Richmond, VA 23225

Office: 804.200.6377 | Mobile: 757.769.9526

taryn.payne@timmons.com

From: Porter, Cassandra (DEQ) <Cassandra.Porter@deq.virginia.gov>
Sent: Thursday, June 18, 2026 3:30 PM
To: sjmatthews@google.com
Cc: Taryn Payne <taryn.payne@timmons.com>; Julie S. Hamilton (julie.s.hamilton@usace.army.mil) <julie.s.hamilton@usace.army.mil>; MRC - jpa Permits <jpa.permits@mrc.virginia.gov>
Subject: 26-0171 Project Loch: Additional Information Request 4

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Good afternoon,

Additional Info/ Revision recieved by VMRC July 2, 2026 / ks

Thank you for your submitted response materials received June 3, 2026. Upon review, there are still items required to complete your application. Please see attached for the additional information request letter, and feel free to reach out if you have any questions.

Respectfully,



Cassie Porter

VWPP Permit Writer and Inspector, PRO/Water
[Virginia Department of Environmental Quality](https://www.deq.state.va.us/)
4949-A Cox Road, Glen Allen, VA 23060
804-814-7234

July 2, 2026

Ms. Cassie Porter
Virginia Department of Environmental Quality
4949A Cox Road
Glen Allen, VA 23060

Ms. Julie Hamilton
U.S. Army Corps of Engineers
9100 Arboretum Parkway #235
Richmond, VA 23226

**Re: Project Loch
(USACE: NAO-2026-00182 & DEQ: 26-0171)
Response to Additional Information Requests**

Ms. Porter and Ms. Hamilton,

Please find responses to the items requested by the Virginia Department of Environmental Quality (DEQ) in an Additional Information Request letter in association with an Individual Permit Request for Project Loch (DEQ: 26-0171 & USACE: NAO-2026-00182) located in Chesterfield County, VA.

Comments below from the DEQ (in blue) with responses (in black):

- 1) The additional information response materials received June 3, 2026 included a credit availability letter demonstrating availability of approximately 13.35 wetland credits in addition to stream credits. In accordance with 9VAC25-210-116.B.1, please provide an analysis to justify that permittee-responsible compensatory mitigation is ecologically and environmentally preferable to the purchase of mitigation bank credits or in-lieu fee program credits with a primary service area that covers the impact site if such credits are available in sufficient quantity for the project at the projected time of need. The analysis shall address the ability of the permittee-responsible compensatory mitigation sites to replace lost wetland acreage and functions or lost stream functions and water quality benefits. The analysis comparing the impacted and compensation sites may use a method that assesses water quality or habitat metrics, such as that required by 9VAC25-210-80 C, or a method that assesses such criteria as water quality benefits, distance from impacts, hydrologic source and regime, watershed, vegetation type, soils, constructability, timing of compensation versus impact, property acquisition, and cost.

The Applicant acknowledges that the additional information response materials submitted on June 3, 2026 included documentation of mitigation bank credit availability. Since that time, the Applicant has further coordinated with mitigation providers and regulatory guidance and has revised the compensatory mitigation approach.

The Applicant has determined that permittee-responsible mitigation (PRM) will no longer be pursued, and all compensatory mitigation requirements for the Project will be satisfied through the purchase of credits from an approved mitigation bank or in-lieu fee program authorized to serve the Project area.

Credit availability information supporting this determination is provided in Attachment 1. As documented therein, Clearwater Ventures and its subsidiary, Bridgeport Mitigation LLC, have executed agreements with the Applicant to provide the compensatory mitigation necessary to offset Project impacts. Specifically, the mitigation plan identifies the transfer of 9.11 wetland credits from the Bobwhite Mitigation Bank and 3,119 stream credits from the Bridgeport Mitigation Bank, both of which are authorized to serve the Project area within HUC 02080207. The Bank Sponsor has contractually committed to deliver the required credits prior to authorized impacts, providing reasonable assurance that all compensatory mitigation requirements for the Project will be satisfied through approved mitigation banking.

- 2) In accordance with 9VAC25-210-80.B.1.m.i, please explain how impacts to existing wetlands at the proposed PRM site will be avoided during construction activities to create additional adjacent wetland acreage.

As discussed above, the Applicant will no longer be pursuing PRM.

- 3) Please note that DEQ has received and is currently processing the State Surface Waters Determination request for the proposed Wauford Property PRM site (SSWD No. 000855). A site visit may be requested in the future.

As discussed above, the Applicant will no longer be pursuing PRM.

- 4) The additional information materials received June 3, 2026 included results of a pre- and post-development point analysis of hydrologic inputs of the avoided intermittent stream channel at the convergence point downstream of an existing wetland area that is planned to be avoided. Please provide a pre- and post-development point analysis of hydrologic inputs immediately downstream of Impacts 23 and 24 at the base of the proposed grading at the limit of disturbance of the site, upstream of the confluence with the unimpacted wetland area.

A supplemental hydrologic point analysis was completed at the location requested by DEQ, specifically immediately downstream of Impacts 23 and 24, at the base of the proposed grading and limit of disturbance, upstream of the confluence with the unimpacted wetland system. The original analysis submitted on June 3, 2026 evaluated hydrologic inputs at the downstream convergence point. Following DEQ's request, the analysis was refined to evaluate the hydrologic inputs at the upstream location immediately adjacent to the avoided aquatic resources.

For the pre-development conditions, the drainage area contributing flow to this location is approximately 85.62 acres. Estimated peak flows are as follows:

- 1-year storm: 42.55 cfs
- 2-year storm: 72.28 cfs
- 10-year storm: 179.22 cfs
- 100-year storm: 416.49 cfs

Under post-development conditions, approximately 49.55 acres of the contributing watershed will be managed through Pond 2, while only a 3.50-acre bypass area will discharge directly to the avoided wetland and stream system.

Estimated post-development peak flows at the requested analysis point are:

- 1-year storm: 6.14 cfs
- 2-year storm: 8.67 cfs

- 10-year storm: 5.13 cfs
- 100-year storm: 8.47 cfs

The post-development condition therefore reflects a reduction in direct runoff inputs to the avoided aquatic resources due to the interception and treatment of runoff within the engineered stormwater management facilities. Approximately 49.55 acres of the contributing watershed are routed through Pond 2, while only the 3.50-acre bypass area discharges directly to the avoided system. Consequently, the remaining wetland area and stream channel upstream of the wetland confluence will continue to receive hydrologic inputs following development, while stormwater controls reduce the magnitude of direct runoff reaching these resources. The proposed stormwater management design was developed in accordance with applicable Virginia stormwater management requirements and is not anticipated to result in secondary impacts to the avoided aquatic resources.

- a. Please note DEQ is assessing the results of the hydrologic analyses provided thus far and may request additional information regarding potential secondary impacts if needed.

Acknowledged.

- 5) A permit application fee is required to complete the application and continue noticing the draft permit. Once the proposed impact information has been determined, DEQ will notify you of the fee amount.

Acknowledged.

The wetland mapping for Offsite Alternative 1 (Hickory Hill Road), originally included in the permit application, has been updated to reflect the most current information and is provided in Attachment 2.

Please feel free to contact me at (804) 200-6377 or taryn.payne@timmons.com if you have any questions or need additional information.

Sincerely,
Timmons Group



Taryn Payne, PWD, PWS, ISA-CA
Environmental Project Manager

Attachments:

1. Compensatory Mitigation Information
2. Updated Wetland Mapping - Offsite Alternative 1 (Hickory Hill Road),



July 2, 2026

Taryn Payne, PWD, PWS, ISA-CA
Environmental Project Manager
Timmons Group
7053 Celebration Park Ave, Suite 300
Richmond, VA 23225

Re: Stream and Wetland Mitigation Plan for Project Loch (the "Project")

Dear Taryn,

Clearwater Ventures and its subsidiary, Bridgeport Mitigation LLC, (the "Bank Sponsor") are under contract with your client to deliver 9.11 wetland credits and 3,119 stream credits from its authorized mitigation banks to offset authorized impacts associated for the Project. The enclosed mitigation plan outlines the mitigation solutions which will be utilized to satisfy the permit requirements. Your client (the Permit Applicant") and Bank Sponsor have executed agreements which obligate the Bank Sponsor to deliver the mitigation credits prior to any authorized impacts resulting from the Project.

Please submit this package to the permitting authorities and let me know if I can be of further assistance. Feel free to reach out if you have any questions. Thank you for the opportunity to work with you and your client on this project.

Sincerely,

James Parker
Founding Partner
Clearwater Ventures LLC
804-819-0474
jparker@clearwaterventuresllc.com

Attachments: 1. Mitigation plan and availability
statement



Mitigation Plan & Availability Statement for Project Loch

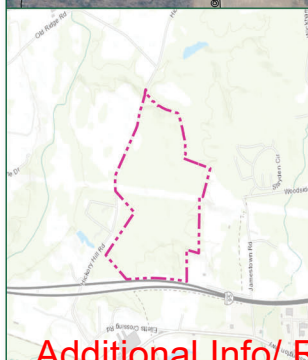
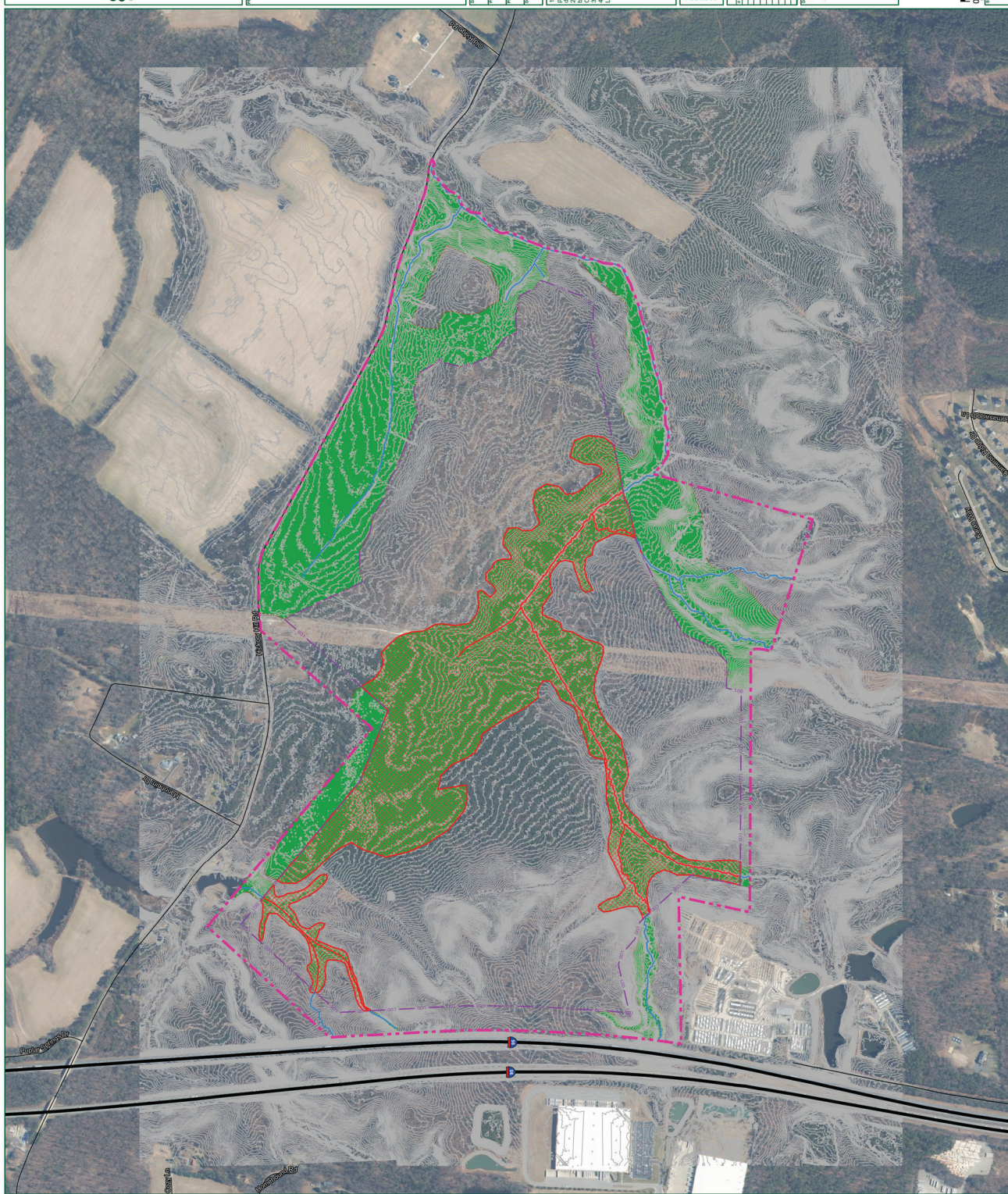
Bridgeport Mitigation LLC (the Bank Sponsor) proposes to satisfy the compensatory mitigation requirements for Project Loch, located in Chesterfield County, Virginia within HUC 02080207 (the Project). The Bank Sponsor will generate and transfer 9.11 wetland credits from the Bobwhite Mitigation Bank and 3,119 stream credits from the Bridgeport Mitigation Bank to satisfy the Project's permit requirements and offset authorized impacts related to the Project. Information pertaining to the proposed mitigation banks is provided herein:

Wetland Mitigation Credit Availability from Bobwhite Mitigation Bank (NAO-2025-01976)

Bridgeport Mitigation LLC is the Bank Sponsor for the Bobwhite Mitigation Bank ("Bobwhite") which is in Powhatan County, Virginia. Bobwhite is in HUC 02080205 and will serve the James River Watershed, including HUC 02080207. USACE issued a public notice for the Bobwhite prospectus on April 15, 2026, and later approved it on June 4, 2026. The Bobwhite MBI was submitted on June 29, 2026, and MBI approval is expected by January 31, 2027. Bobwhite is proposed to generate a total of 69.84 wetland credits, with an initial release of approximately 13.88 wetland credits following MBI approval in early 2027. The Bank Sponsor will provide 9.11 wetland credits from the initial release to satisfy the permit requirements for the Project.

Stream Mitigation Credit Availability from the Bridgeport Mitigation Bank (NAO-2025-00979)

Bridgeport Mitigation LLC is the Bank Sponsor for the Bridgeport Mitigation Bank ("Bridgeport") which is in Buckingham County, Virginia. Buckingham is in HUC 02080203 and will serve the James River Watershed, including HUC 02080207. USACE issued a public notice for the Bridgeport prospectus on August 11, 2025, and later approved it on October 8, 2025. The Bridgeport MBI is currently out for signatures and will be approved in July 2026. Bridgeport will generate a total of 37,163 stream credits, with an initial release of 7,714 stream credits expected immediately following MBI approval. The Bank Sponsor will provide 3,119 stream credits from the initial release to satisfy the permit requirements for the Project.



- Legend
- Project Study Limits - 507.5 Acres
 - Limits of Disturbance - 339.9 Acres
 - Permanent Stream Impact - 8,493 LF
 - Desktop Delineated Steams
 - Permanent Wetland Impact - 3,899,800 sqft (89.5 ac)
 - Desktop Delineated Wetlands
 - Existing Topography